

TAX INVOICE

41 Industrial Ave
Logan Village QLD 4207
Office: (07) 3803 1788
Email: team@playforce.com.au
Web: playforce.com.au

Billing:
Logan City Council
150 Wembley Rd
Logan Central QLD 4114, Australia

Invoice Number INV-4108
Date 21-Jul-2025
Reference 709828
Due Date 04-Aug-2025

Qty	Item	Description	Unit Price	Price (Ex. GST)
		Contact: Jessica Burke Account: PK000023 Contract: LB304 (LocalBuy) Date Completed: 18-Jul-2025 3726190 - MTN - Noyer Park - Mount Warren Park (Ref: 29448)		
1.00	MISC1	Replace swing hangers with new	1254.10	1254.10

Electronic Funds Transfer

BSB: 064 400
Account: 10367833
Remittance To: accounts@playforce.com.au

Total (Ex. GST) \$ 1,254.10
GST (10%) \$ 125.41
Total (Inc. GST) \$ 1,379.51

Please note that our Business Name, ABN and bank details changed as of 1st of July 2024.

Terms & Conditions

1. General

- a. All quotations provided by Play Force Australia Pty Ltd ("Play Force") and all orders for services made by you ("Client") are accepted subject to these general terms and conditions.
- b. No further terms and conditions, which are not otherwise incorporated by reference in this document, will be deemed to form part of the agreement between Play Force and the Client unless those further terms and conditions are agreed to between the parties in writing.
- c. All quotes issued by Play Force to the Client are valid for 30 days from the date of the quote. Play Force reserves the right to amend prices as necessary during or after this period and the price charged to the Client will be the price current at the time of supply unless otherwise agreed in writing.

2. Provision of Services

- a. Play Force shall provide to the Client the services described in the quotation provided by Play Force together with such services as may be mutually agreed in writing from time to time ("the Services").
- b. The Client is taken to have exclusively accepted and is immediately bound by these terms and conditions if the Client places an order for the Services, accepts a quote (be it verbally or in writing) or otherwise permits or instructs Play Force to carry out the Services.
- c. Play Force shall provide the services with such skill, care and diligence as is generally exercised by competent members of the relevant profession performing services of a similar nature, at the time the services are provided.
 - i. If the Services relate to playgrounds, the Client acknowledges and accepts that the Services are carried out in accordance with AS4685 (Parts 0-6 & 11) and AS4422:2016.
 - ii. If the Services relate to permanently installed outdoor fitness equipment, the Client acknowledges and accepts that the Services are carried out in accordance with AS16630:2021.
 - iii. If the Services relate to skate parks, the client acknowledges and accepts that the Services are carried out in accordance with ASEN14974:2021.
 - iv. If the Services relate to Parkour equipment, the client acknowledges and accepts that the Services are carried out in accordance with ASEN16899:2020.
 - v. If the Services relate to contained play facilities, the client acknowledges and accepts that the Services are carried out in accordance with AS3533.4.2-2013.
- d. Where the services are required to be performed at a site nominated by the Client, the Client must provide Play Force with safe and reasonable access to enable Play Force to provide the services. If access is not granted by the Client or is not safe, the Client is still liable to pay for the Services unless alternative access can be mutually agreed.
- e. If Play Force requires access to an adjoining or adjacent property in order to carry out the Services at a site owned/occupied by the Client, then it is the Client's responsibility to gain permission from the adjoining or adjacent land owner for Play Force to have access to complete the Services.
- f. Play Force's staff are sufficiently qualified and experienced in carrying out the Services.
- g. If the Client has any safety requirements for attendance at the site, the Client must inform Play Force of those in writing at least 2 business days prior to Play Force's attendance on site.
- h. The Client acknowledges and agrees that Play Force will not be liable for any loss or damage whatsoever connected to or arising from the installation (including relocation or existing equipment/structures) or design of any equipment, structure or the like unless Play Force was responsible for the installation of that equipment, structure or the like.
- i. The Client acknowledges and agrees that the services may be subject to limitations as set out in Play Force's quote or otherwise in Play Force's inspection and/or maintenance report(s) and/or design advice/consultation report(s).
- j. If the Services require Play Force to undertake any digging work, the Client must advise Play Force beforehand of the precise location of all underground services on the site by provision of dial before you dig plans. The underground services that the Client must identify include, but are not limited to, electrical services, gas services, sewer services, water services, irrigation pipes, telecommunication services, fibre optic cables, gas services and any other services that may be on site.

- k. Whilst Play Force will take all care to avoid damage to any underground services, the Client agrees to indemnify Play Force in respect of any and all liability claims, loss, damage, costs and fines as a result of damage to underground services not precisely located by the Client as per clause 2(k).
- l. The costs of rectifying any services that are damaged during excavation will be borne by the Client as a variation.

3. Client to Provide Information

- a. The Client shall, at its own cost and as soon as practicable after engaging Play Force, make available to Play Force all information, documents and other particulars relating to the Client's requirements as is necessary for Play Force to carry out the Services (the "Requirements").
- b. Play Force is entitled to rely on such information, documents and other particulars as are provided by the Client pursuant to or in connection with this Agreement and the Client warrants that the information is accurate and correct.
- c. The parties agree that Play Force accepts no responsibility for any loss, damage or howsoever resulting from any inaccuracies in the Requirements and the Client agrees to indemnify Play Force absolutely against any claim, demand, or otherwise arising out of same.

4. Payment of Services

- a. Unless otherwise specified in the quote or tax invoice issued by Play Force or this document, all payments are required within 30 days of the Client receiving a valid tax invoice in respect of the Services provided.
- b. If the Client does not pay Play Force within 30 days of the due date of any tax invoice, Play Force will charge the Client interest at the rate of 4% per month compounded from the due date until payment is made, but before judgment if court proceedings are advanced. Play Force can also recover from the Client payment of any costs (including legal) which Play Force may incur in the recovery of monies due by the Client.
- c. The Client acknowledges that the price for the services may be adjusted to reflect any additional costs, expenses, liabilities, losses or other amounts incurred or suffered by Play Force in the performance of the Services that Play Force did not know about at the time that its quote was issued to the Client.
- d. Where the Services are delivered over a time period greater than 1 year, the price for the Services yet to be provided will increase by 5% or CPI (whichever is greater) of the total agreed price upon each annual anniversary of Play Force's engagement to provide the Services. The increased price will be due and payable by the Client to Play Force in accordance with this Agreement.
- e. At Play Force's sole discretion, a deposit for the Services may be required to be paid in a sum and time nominated by Play Force.
- f. Payment may be made by cash, cheque, bank cheque, electronic/online banking or any other method as agreed between the Client and Play Force.
- g. The Client acknowledges that Play Force accepts no liability whatsoever for any fraud or impersonation attack in respect of the Client's payment for the Services and if Client's payment is marred by fraud or impersonation attack, the Client is still liable to pay Play Force for the services in accordance with these terms and conditions.
- h. The Client shall not be entitled to set off against, or deduct from the price of the Services, any sums owed or claimed to be owed to the Client by Play Force (or Play Force's subcontractors) nor to withhold payment of any invoices because part of that invoice is in dispute.

5. GST

- a. In this clause 5:
 - i. GST Law has the meaning given to "GST law" in the A New Tax System (Goods and Services Tax) Act 1999 (Cth);
 - ii. GST has the meaning given by the GST Law.
- b. Unless otherwise stated, all amounts payable under or in connection with this document are exclusive of GST.
- c. A recipient of a taxable supply under or in connection with this document must pay to the supplier, in addition to the GST exclusive consideration for the taxable supply, an amount equal to any GST paid or payable by the supplier in respect of the taxable supply (GST Amount).
- d. The recipient must pay the GST Amount to the supplier when the GST exclusive consideration or part of it is provided, except that the recipient need not pay the GST Amount unless the recipient has received a tax invoice (or an adjustment note) for that taxable supply.

- e. Where a supplier incurs a cost or expense for which it may claim payment, reimbursement or indemnity from another party under or in connection with this document, the amount to be paid or credited to the supplier is the cost or expense (reduced by the input tax credit that the supplier is entitled to claim in respect of that cost or expense) plus the amount in respect of GST payable by the recipient as calculated under this clause 5.

6. Appointment of Subcontractors

- a. If Play Force considers it appropriate to do so, it may engage other consultants or subcontractors to assist Play Force in specialist areas and the Client hereby agrees to those other consultants or subcontractors being engaged by Play Force as part of the Services.

7. Limitation of Liability

- a. The Client acknowledges and agrees that the maximum aggregate liability of Play Force under this agreement is limited to the price of the goods or services purchased from Play Force by the Client.
- b. Play Force is not liable to the Client in respect of any indirect, consequential or special losses (including loss of profit, loss of business opportunity and payment of liquidated sums or damages under any other agreement).
- c. Play Force shall not be liable to any party including the Client and its agents and contractors for the accuracy of the Requirements, any works undertaken by persons/entities other than Play Force (including the installation as per clause 2(h) of this Agreement) or any contractual obligations of the Client to third parties.

8. Insurance

- a. The Client must maintain public liability insurance for an amount not less than \$10,000,000 in respect of any claim.
- b. If relevant, the Client must maintain workers compensation insurance in respect of its employees and subcontractors to cover the maximum liability which may be imposed by law from time to time.
- c. If requested by Play Force, the Client must provide a certificate of currency for the insurances at clause 8(a) and 8(b) of this Agreement within 7 days.
- d. Play Force must maintain public liability insurance for an amount not less than \$10,000,000 in respect of any claim and professional indemnity insurance for an amount not less than \$5,000,000 in respect of any claim.
- e. Play Force must maintain workers compensation insurance in respect of its employees and subcontractors to cover the maximum liability which may be imposed by law from time to time.

9. Safety

- a. The Client remains, at all times, solely liable for the safety and compliance of all of its equipment, structure(s) and property and any associate infrastructure/area. Nothing in this Agreement or in the Services renders Play Force responsible or liable for any of the Client's obligations at law.
- b. It is the responsibility of the Client to ensure that the all of its equipment, structure(s) and property is safe and in good working order before allowing it to be used by members of the public or persons that it is intended to be used by.
- c. Any decision to allow the Client's equipment, structure(s) and property to be used in an unsupervised setting will be the responsibility of the Client.
- d. Play Force will not be liable to the Client or anyone else in respect of defects, risks or safety issues that are latent or not readily apparent upon a visual inspection.
- e. The Client agrees to indemnify Play Force in respect of any and all loss, liability, claim, suit, demand or cause of action whatsoever arising from or in any way connected to the Services including, but not limited to, the installation or management or advice arising from or in any way connected with any equipment or structure(s) or improvements of any nature.

10. Intellectual Property

- a. Any documents, reports, designs or products shall remain the intellectual property and vested in Play Force and shall only be used by the Client and Play Force's discretion. Under no circumstances can that material be used by the Client or anyone else without the express written approval of Play Force.
- b. If Play Force is made aware of any breach of clause 10(a) of this Agreement, Play Force shall be entitled to charge the Client a fee, determined by the Play Force in a reasonable sum in reflection of the

infringement of Play Force's intellectual property, for the unauthorized use or disclosure of the material.

11. Termination

- a. Without prejudice to any other remedies that Play Force may have, if the Client is in breach of any obligation of this Agreement, Play Force may, at its absolute discretion, suspend or terminate its supply of the Services to the Client. Play Force will not be liable to the Client for any loss or damage the Client may suffer because Play Force has exercised rights under this clause.
- b. In the event the Client cancels the supply of the Services, the Client shall be liable for any and all loss incurred (whether direct or indirect) by Play Force as a direct result of the Client's cancellation.

12. Dispute Resolution

- a. If a dispute arises between the parties to this contract then either party shall send to the other party a notice of dispute in writing adequately identifying and providing details of the dispute. Within fourteen (14) days after service of a notice of dispute, the parties shall confer at least once, to attempt to resolve the dispute. At any such conference each party must be represented by a person having authority to agree to a resolution of the dispute.
- b. In the event that the dispute cannot be resolved either party may, by further notice in writing delivered by hand or sent to the registered office of the other party, refer such dispute to mediation. The identity of the mediator will be selected from a panel of three proposed by Play Force. The parties agree that the cost of the mediation or arbitration will be borne equally and the parties must cooperate with, and promptly abide by any reasonable directions given by the mediation in respect of the mediation.
- c. If the dispute is not resolved within 21 days after a mediation, then either party may then, but not earlier, commence any court proceedings in respect of the dispute.
- d. Notwithstanding anything else in this clause, Play Force shall not be prevented from doing any (including bringing court proceedings) at any time to recover money owing by the Client to Play Force under this Agreement.

13. The Competition and Consumer Act 2010 and Fair Trading Act

- a. Nothing in this Agreement is intended to have the effect of contracting out any applicable provisions of the Competition and Consumer Act 2010 or the Fair Trading Acts in each of the States and Territories of Australia, except to the extent permitted by those Acts where applicable.

14. General

- a. These terms and conditions constitute the entire agreement between the parties relating in any way to the subject matter. All previous negotiations, understandings, representations, warranties or commitments about the subject matter are merged in these terms and conditions and are of no further effect.
- b. The failure by either party to enforce any provision of this Agreement shall not be treated as a waiver of that provision, nor shall it affect that party's right to subsequently enforce that provision.
- c. If any provision of this Agreement is deemed invalid, void, illegal or unenforceable in any way, the validity, existence, legality and enforceability of the remaining clauses shall not be affected, prejudiced or impaired.
- d. Neither party to this Agreement may assign this contract, any payment or any right, benefit or interest under this Agreement without the written consent of the other party (which shall not be unreasonably withheld).
- e. The parties acknowledge and agree that these terms and condition can be amended by Play Force by notifying the Client in writing. Any changes will be deemed to take effect from the date upon which the Client accepts such changes.
- f. The parties acknowledge and agree that the persons entering into this Agreement are authorised to do so and have obtained all necessary authorisations to allow them to do so and this Agreement creates binding legal relations on each party.
- g. Neither party shall be liable for any default due to any act of God, terrorism, war, strike, industrial action, flood, storm or other event beyond the reasonable control of either party.

15. Applicable Law

- a. This Agreement is governed by the laws of Queensland.